

1 ENGROSSED SENATE AMENDMENT

TO

2 ENGROSSED HOUSE

BILL NO. 3834

By: May and Pae of the House

and

Frix of the Senate

7 An Act relating to ibogaine clinical trials; creating
8 the Oklahoma Breakthrough Therapy Act; defining
9 terms; establishing requirements for drug developers;
10 providing contractual terms; providing for
11 intellectual property rights; requiring submission of
12 reports; creating an intellectual property account in
the Office of the State Treasurer; prohibiting
adverse licensing action towards medical
professionals; providing funding for trials;
providing for noncodification; providing for
codification; and providing an effective date.

15 AMENDMENT NO. 1. Page 1, strike the title, enacting clause and
16 entire bill and insert

17 "An Act relating to ibogaine clinical trials;
18 creating the Oklahoma Breakthrough Therapy Act;
19 providing short title; defining terms; directing the
State Department of Health to enter into certain
contracts subject to specified conditions;
20 establishing requirements for drug developers;
21 providing contractual terms; providing for
22 intellectual property rights; requiring submission of
certain reports; creating the Ibogaine Development
Revolving Fund; specifying type of fund and sources
of monies; providing for budgeting and expenditure of
monies for specified purpose; granting certain
23 professional immunity to medical professionals;
24 providing for codification; and providing an
effective date.

1
2 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

3 SECTION 1. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 2-806.1 of Title 63, unless
5 there is created a duplication in numbering, reads as follows:

6 This act shall be known and may be cited as the "Oklahoma
7 Breakthrough Therapy Act".

8 SECTION 2. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 2-806.2 of Title 63, unless
10 there is created a duplication in numbering, reads as follows:

11 As used in this act:

12 1. "Department" means the State Department of Health;

13 2. "Drug developer" means a public-private partnership, for-
14 profit, nonprofit, or public benefits corporation engaged in drug
15 development and manufacturing that has established an ibogaine drug
16 development agreement with at least one additional state with a plan
17 to conduct drug development clinical trials to obtain United States
18 Food and Drug Administration approval for the use of ibogaine; and

19 3. "Ibogaine" means ibogaine and ibogaine-based therapeutics,
20 including ibogaine analogs.

21 SECTION 3. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 2-806.3 of Title 63, unless
23 there is created a duplication in numbering, reads as follows:

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1 A. The State Department of Health shall, subject to the
2 availability of funds and in accordance with the provisions of this
3 act, contract with a drug developer to support multistate drug
4 development clinical trials to obtain United States Food and Drug
5 Administration approval for the use of ibogaine.

6 B. Before the State Department of Health may contract with the
7 drug developer, the drug developer shall provide to the Department:

8 1. A detailed description of the drug developer's strategy for
9 obtaining approval for ibogaine from the United States Food and Drug
10 Administration through sanctioned drug development clinical trials,
11 including a detailed clinical trial design, a description of the
12 composition of the consortium's drug development clinical trial team
13 and the expertise of the team members, its plan to submit an
14 investigational new drug application, if it has not already done so,
15 and to seek a breakthrough therapy designation under 21 U.S.C.,
16 Section 356 to expedite the trials;

17 2. Protocols for clinical trial participant recruitment,
18 patient screening criteria administration, aftercare, and post-acute
19 treatment support;

20 3. Certification of an existing ibogaine drug development
21 agreement with one or more other states or state-sponsored
22 consortia; and
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1 4. Financial disclosures sufficient to verify the drug
2 developer is prepared to meet its full obligations under this
3 section.

4 C. Before the Department may contract with the drug developer,
5 the Department shall negotiate a contract requiring the drug
6 developer to substantially agree to the following:

7 1. To match the state's investment in drug development clinical
8 trials with ibogaine with an equal amount of additional funding and
9 to devote this total amount to drug development clinical trials
10 conducted within this state. These trials shall, to the maximum
11 extent possible, use in-state clinicians, facilities, and study
12 participants;

13 2. To provide reporting as specified under Section 4 of this
14 act;

15 3. To establish a plan to ensure broad and accessible ibogaine
16 treatment access to patients within the state following approval of
17 ibogaine by the United States Food and Drug Administration by
18 diverse means including, but not limited to:

19 a. providing priority access to ibogaine treatment to
20 residents of the state,

21 b. seeking third-party payor approval for ibogaine
22 treatment within the state,
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1 c. developing means of access to ibogaine treatment
2 within the state for uninsured and low-income
3 individuals, and

4 d. training and credentialing medical providers within
5 the state to administer ibogaine treatment; and

6 4. To provide a plan to recognize the state's economic interest
7 in the intellectual property generated over the course of the
8 multistate drug development clinical trials with ibogaine,
9 consisting of the share of the proceeds from such intellectual
10 property that is proportional to the state's contribution to the
11 total cost of the multistate drug development trials, and to remit
12 the state's share of those proceeds to the Department at agreed-upon
13 intervals during the period for which the drug development clinical
14 trials are funded and during any following period of
15 commercialization. The Department shall deposit all remitted
16 proceeds in the Ibogaine Development Revolving Fund created in
17 Section 5 of this act.

18 D. In negotiating a contract with the drug developer, the
19 Department may agree to additional terms and make reasonable
20 deviations from the requirements of this section if the resulting
21 contract is fair and creates at least substantially equivalent value
22 for the state.

23 E. For purposes of this section, intellectual property rights
24 and other economic rights accruing to the State of Oklahoma arising

1 from multistate drug development clinical trials with ibogaine shall
2 include any and all of the following as related to these trials:

- 3 1. Intellectual property, technology, and inventions;
- 4 2. Patents, trademarks, and licenses;
- 5 3. Proprietary and confidential information;
- 6 4. Trade secrets, data, and databases;
- 7 5. Tools, methods, and processes;
- 8 6. Treatment models or techniques;
- 9 7. Administration protocols; and
- 10 8. Works of authorship.

11 SECTION 4. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 2-806.4 of Title 63, unless
13 there is created a duplication in numbering, reads as follows:

14 A. The drug developer shall quarterly prepare and
15 electronically submit to the State Department of Health:

- 16 1. A report on the progress of the multistate drug development
17 clinical trials with ibogaine conducted pursuant to this act; and
- 18 2. A financial status report, including information to verify
19 expenditures of state funds and required matching funds.

20 B. The Department shall electronically submit a report to the
21 Governor, the President Pro Tempore of the Senate, and the Speaker
22 of the House of Representatives on the progress of the drug
23 development clinical trials and its related financial status by
24 December 1 of each year until the clinical trials are concluded.

SECTION 5. NEW LAW A new section of law to be codified

in the Oklahoma Statutes as Section 2-806.5 of Title 63, unless
there is created a duplication in numbering, reads as follows:

There is hereby created in the State Treasury a revolving fund
for the State Department of Health to be designated the "Ibogaine
Development Revolving Fund". The fund shall be a continuing fund,
not subject to fiscal year limitations, and shall consist of all
monies received by the Department from:

1. Remittance of the state share of proceeds from intellectual
property generated over the course of the multistate drug
development clinical trials as provided in paragraph 4 of subsection
C of Section 3 of this act; and

2. Any other source when provided for the purpose described in
this section including, but not limited to:

- a. legislative appropriations,
- b. private gifts and donations, and
- c. public and private grants.

All monies accruing to the credit of the fund are hereby
appropriated and may be budgeted and expended by the Department for
the purpose of supporting programs or research benefiting at-risk
populations that suffer from conditions treatable with ibogaine
including, but not limited to, traumatic brain injury, opioid use
disorder, co-occurring substance use disorder, and other
neurological or mental health disorders. Expenditures from the fund

1 shall be made upon warrants issued by the State Treasurer against
2 claims filed as prescribed by law with the Director of the Office of
3 Management and Enterprise Services for approval and payment.

4 SECTION 6. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 2-806.6 of Title 63, unless
6 there is created a duplication in numbering, reads as follows:

7 Medical professionals licensed by the State of Oklahoma shall
8 not be subject to professional disciplinary action solely for
9 recommending participation in clinical trials of ibogaine.

10 SECTION 7. This act shall become effective November 1, 2026."

11 Passed the Senate the 29th day of April, 2026.

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13 _____
14 Presiding Officer of the Senate

15 Passed the House of Representatives the ____ day of _____,
16 2026.

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18 _____
19 Presiding Officer of the House
20 of Representatives
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24

1 ENGROSSED HOUSE
2 BILL NO. 3834

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7 An Act relating to ibogaine clinical trials; creating
8 the Oklahoma Breakthrough Therapy Act; defining
9 terms; establishing requirements for drug developers;
10 providing contractual terms; providing for
11 intellectual property rights; requiring submission of
12 reports; creating an intellectual property account in
13 the Office of the State Treasurer; prohibiting
14 adverse licensing action towards medical
15 professionals; providing funding for trials;
16 providing for noncodification; providing for
17 codification; and providing an effective date.

18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 8. NEW LAW A new section of law not to be
20 codified in the Oklahoma Statutes reads as follows:

21 This act shall be known and may be cited as the "Oklahoma
22 Breakthrough Therapy Act".

23 SECTION 9. NEW LAW A new section of law to be codified
24 in the Oklahoma Statutes as Section 2-806 of Title 63, unless there
is created a duplication in numbering, reads as follows:

As used in this act:

1. "Department" means the State Department of Health;

1 2. "Drug developer" means a public-private partnership, for-
2 profit, nonprofit, or public benefits corporation engaged in drug
3 development and manufacturing that has established an ibogaine drug
4 development agreement with at least one additional state with a plan
5 to conduct drug development clinical trials to obtain United States
6 Food and Drug Administration approval for use of ibogaine; and

7 3. "Ibogaine" means ibogaine and ibogaine-based therapeutics,
8 including ibogaine analogs.

9 SECTION 10. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 2-807 of Title 63, unless there
11 is created a duplication in numbering, reads as follows:

12 A. Before the State Department of Health may contract with the
13 drug developer, the drug developer shall provide to the Department:

14 1. A detailed description of the drug developer's strategy for
15 obtaining approval for ibogaine from the United States Food and Drug
16 Administration through sanctioned drug development clinical trials,
17 including a detailed clinical trial design, a description of the
18 composition of the consortium's drug development clinical trial team
19 and the expertise of the team members, its plan to submit an
20 investigational new drug application, if it has not already done so,
21 and to seek a breakthrough therapy designation under 21 U.S.C.,
22 Section 356, to expedite the trials;

1 2. Protocols for clinical trial participant recruitment,
2 patient screening criteria administration, aftercare, and post-acute
3 treatment support;

4 3. Certification of an existing ibogaine drug development
5 agreement with one or more other states or state-sponsored
6 consortia; and

7 4. Financial disclosures sufficient to verify the drug
8 developer is prepared to meet its full obligations under this
9 section.

10 B. Before the Department may contract with the drug developer,
11 the Department shall negotiate a contract requiring the drug
12 developer to substantially agree to the following:

13 1. To match the state's investment in drug development clinical
14 trials with ibogaine with an equal amount of additional funding and
15 to devote this total amount to drug development clinical trials
16 conducted within the State of Oklahoma. These trials shall, to the
17 maximum extent possible, use in-state clinicians, facilities, and
18 study participants;

19 2. To provide reporting as specified under Section 4 of this
20 act;

21 3. To establish a plan to ensure broad and accessible ibogaine
22 treatment access to patients within the state following approval of
23 ibogaine by the United States Food and Drug Administration by
24 diverse means including, but not limited to:

- a. providing priority access to ibogaine treatment to residents of the state,
- b. seeking third-party payor approval for ibogaine treatment within the state,
- c. developing means of access to ibogaine treatment within the state for uninsured and low-income individuals, and
- d. training and credentialing medical providers within the state to administer ibogaine treatment; and

4. To provide a plan to recognize the state's economic interest in the intellectual property generated over the course of the multistate drug development clinical trials with ibogaine, consisting of share of the proceeds from said intellectual property which is proportional to the state's contribution to the total cost of the multistate drug development trials, and to deposit the state's share of those proceeds in the Ibogaine Intellectual Property Account established under Section 5 of this act at agreed upon intervals during the period for which the drug development clinical trials are funded and during any following period of commercialization.

C. In negotiating a contract with the drug developer, the Department may agree to additional terms and make reasonable deviations from the requirements of this section as long as the

1 resulting contract is fair and creates at least substantially
2 equivalent value for the state.

3 D. For purposes of this section, intellectual property rights
4 and other economic rights accruing to the State of Oklahoma arising
5 from multistate drug development clinical trials with ibogaine shall
6 include any and all of the following as related to these trials:

- 7 1. Intellectual property, technology, and inventions;
- 8 2. Patents, trademarks, and licenses;
- 9 3. Proprietary and confidential information;
- 10 4. Trade secrets, data, and databases;
- 11 5. Tools, methods, and processes;
- 12 6. Treatment models or techniques;
- 13 7. Administration protocols; and
- 14 8. Works of authorship.

15 SECTION 11. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 2-808 of Title 63, unless there
17 is created a duplication in numbering, reads as follows:

18 A. The drug developer shall quarterly, prepare and submit to
19 the State Department of Health:

- 20 1. A report on the progress of the multistate drug development
21 clinical trials with ibogaine conducted pursuant to this act; and
- 22 2. A financial status report, including information to verify
23 expenditures of state funds and required matching funds.

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1 B. The State Department of Health shall submit a report to the
2 Legislature on the progress of the drug development clinical trials
3 and its related financial status by December 1 of each year until
4 the clinical trials are concluded.

5 SECTION 12. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 2-809 of Title 63, unless there
7 is created a duplication in numbering, reads as follows:

8 The ibogaine intellectual property account shall be created in
9 the Office of the State Treasurer. All receipts from the proceeds
10 from the commercialization of intellectual property created through
11 the public-private partnership created pursuant to Section 3 of this
12 act shall be deposited into the account. Monies in the account
13 shall be spent only after appropriation. Expenditures from this
14 account shall be used only for programs or research benefitting at-
15 risk populations that suffer from conditions treatable with
16 ibogaine, including but not limited to traumatic brain injury,
17 opioid use disorder, co-occurring substance use disorder, and other
18 neurological or mental health disorders.

19 SECTION 13. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 2-810 of Title 63, unless there
21 is created a duplication in numbering, reads as follows:

22 Medical professionals licensed by the State of Oklahoma shall
23 not be subject to adverse licensing action for recommending ibogaine
24 therapy services.

SECTION 14. This act shall become effective November 1, 2026.

Passed the House of Representatives the 11th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the _____ day of _____, 2026.

Presiding Officer of the Senate